

Authority for Personal Data
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autoriteitpersoonsgegevens.nl
The Minister for Legal Protection
P.O. Box 20301
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Date

January 24, 2023

Our reference

z2022-7172

Your letter of

December 6, 2022

Your reference

4345844

Subject

Draft bill regarding additional measures against organized crime in detention

Dear Mr. Weerwind,

In your letter dated December 6, 2022, the Authority for Personal Data (AP) was consulted based on the provisions of Article 35b, first paragraph, under b, of the Police Data Act (Wpg), regarding the draft amendment of the Penitentiary Principles Act in connection with additional measures against organized crime during detention (hereinafter: the draft).

The AP has a comment on the draft and advises that this should be taken into account.

Scope of the draft

The draft bill establishes a power of command for the Minister for Legal Protection, allowing for the further restriction of contacts of certain detainees with the outside world. Additionally, a delegation basis will be included to set further rules regarding how the access of legal aid providers to the detainee can be limited and how visual supervision will be further structured.

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Advice

Article 40b of the Penitentiary Principles Act introduces the authority for the Minister for Legal Protection to order that a detainee from the extra secure institution or section, who is suspected of misusing contacts for life-threatening or seriously intimidating activities in the outside world, be subjected to restrictions necessary to prevent those activities. According to the explanatory memorandum, he must have information from the Detainees Research Information Point (GRIP).¹

However, there is no legal basis for the provision of information from GRIP to the Minister for Legal Protection: the provision does not fall under Article 4:3, first paragraph, under a, of the Police Data Decree (Bpg), and Article 4:3, first paragraph, under c, of the Bpg concerns provision to directors of DJI, not to the Minister for Legal Protection.

The AP advises that the explanatory memorandum should indicate that Article 4:3, first paragraph, of the Bpg should also be amended in connection with this draft bill.

Disclosure of the advice

The AP intends to make this advice public on the website www.autoriteitpersoonsgegevens.nl as soon as the text of the (amended) draft is made public. The AP would like to be informed of the expected timing of the disclosure as soon as it is known.

Sincerely,
Authority for Personal Data,

Aleid Wolfsen
Chairman

1 Explanatory memorandum p. 4.